

24STCV03923 24STCV03923

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-21

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Case Number: 24STCV03923 Hearing Date: July 21, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:09 PM on July 20, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 20, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges that he tripped

and fell due an uneven crosswalk.

The public entity Defendants filed

Cross-Complaints seeking indemnity.

Defendant The People of the State
of California, acting by and through the Department of Transportation
(Caltrans) moves for summary adjudication.

TENTATIVE RULING

Defendant
The People of the State of California, acting by and through the Department of
Transportation (Caltrans)'s motion for summary judgment is GRANTED.

ANALYSIS

Motion For Summary Adjudication

Discussion

Defendant The People of the State
of California, acting by and through the Department of Transportation
(Caltrans) moves for summary adjudication as follows: Plaintiff failed to
timely file a government claim prior to filing the subject suit, failed to seek
leave to file a late claim, and is jurisdictionally barred from now doing so.

‘The Government Claims Act (§ 810 et seq.)

“establishes certain conditions precedent to the filing of a
lawsuit against a public entity. ... [A] plaintiff must timely [present] a claim
for money or damages [to] the public entity. (§ 911.2.) The failure to do so
bars the plaintiff from bringing suit against that entity. (§ 945.4.)”

[Citation.] ... [¶] ‘Claims for personal injury must be presented not later than
six months after the accrual of the cause of action (§ 911.2, subd. (a).) ...

[¶] ...’ ... [¶] ... However, ‘if the injured party fails to [present] a timely
claim, a written application may be made to the public entity for leave to
present [a late] claim. (Gov. Code, § 911.4, subd. (a).) ...’ (Citation omitted.) The
application must be presented to the public entity no later than one year after
the accrual of the cause of action. (§ 911.4, subd. (b).) Unless the
one-year period is tolled (see § 911.4, subd. (c)), the public entity is
“powerless to grant relief” if an application for leave to file a late claim was
presented after the one-year deadline. (Citation omitted.)

“If the public entity

denies the application [for leave to present a late claim], Government Code section 946.6 authorizes the injured party to petition the court for relief from the claim requirements.” (Citation omitted.) “The court shall relieve the petitioner from the [*422] [claim] requirements ... if the court finds that the application to the [public entity for leave to present a late claim] under Section 911.4 was made within a reasonable time not to exceed [one year after the accrual of the cause of action] ... and that one or more [of four criteria] is applicable” (§ 946.6, subd. (c).) One of the criteria is that “[t]he failure to [timely] present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim” (Citation omitted.)

(Coble v.

Ventura County Health Care Agency (2021) 73 Cal.App.5th 417, 421-22.)

Defendant’s separate statement sets forth evidence supporting the following undisputed facts:

1. Plaintiff, Israel Celado Perez

(Plaintiff), filed his Complaint for Damages on February 15, 2024, bringing one cause of action against the City of Los Angeles and the County of Los Angeles for Liability for Dangerous Condition of Public Property, pursuant to Government Code § 835 et seq., seeking “general damages,” “special damages,” “costs of suit,” and “such other and further relief as the Court may deem just and proper.” Declaration of Aine Thein (Thein Decl.) ¶¶5-6, Ex. A.

2. On October 18, 2024 Plaintiff filed

an Amendment to the February 15, 2024 Complaint, naming The People of the State of California, Acting by and through the Department of Transportation, erroneously sued as “California Department of Transportation (CalTrans)” as Doe 1, Thein Decl. ¶7, Ex. B.

3. Plaintiff claims that “On or about

February 27, 2023,” Plaintiff was “seriously injured when he tripped and fell due to an uneven crosswalk” located near “N. Western Ave. and Santa Monica Blvd., Los Angeles, CA 90029” and that Plaintiff has “complied with applicable claims statutes,” indicating Plaintiff was aware of the claims presentation requirements. Thein Decl. ¶6, Ex. A at. p. 2, ¶9 and p.4, ¶1.

4. On January 3, 2025, Caltrans was served with the Doe Amendment and Complaint. On February 3, 2025, Caltrans filed its Answer to Plaintiff's Complaint. Caltrans' Twenty-Ninth Affirmative Defense alleges that Plaintiff's claims are time-barred. Caltrans' Thirtieth Affirmative Defense alleges that Plaintiff failed to Comply with the California Tort Claims Act. Caltrans' Thirty-Second Affirmative Defense alleges that Plaintiff failed to comply with Gov't Code § 911.2. Caltrans' Thirty-Third Affirmative Defense alleges that Plaintiff failed to comply with Gov't Code § 945.4. Caltrans' Thirty-Fourth Affirmative Defense alleges that Plaintiff failed to comply with Gov't Code § 945.6. Caltrans' Thirty-Sixth Affirmative Defense alleges that Plaintiff failed to comply with Gov't Code § 950.6. Their Decl. ¶8, Ex. C, and ¶9, Ex. D at pp. 7-9.

5. Plaintiff was required to comply with the Tort Claims Act by presenting his claim against Caltrans to the Department of General Services within the timeframes dictated by the Tort Claims Act. (Government Code §§ 810-996.6). Their Decl. ¶10, Ex. E.

6. On November 26, 2025, Caltrans propounded its first set of Requests for Admission, asking Plaintiff to admit he has "not filed any GOVERNMENT CLAIM regarding the SUBJECT INCIDENT with respect to [Caltrans]" and that Plaintiff admit he has "not filed a GOVERNMENT CLAIM regarding the SUBJECT INCIDENT pursuant to the processes outlined in the GOVERNMENT CLAIMS ACT with respect to [Caltrans]" Their Decl. ¶¶11-12, Ex. F at pp. 3-4, Request for Admission Nos. 1 and 2.

7. On January 13, 2026, Plaintiff responded "Admit" to both Request for Admission No. 1 and to Request for Admission No. 2. Their Decl. ¶¶13-14, Ex. G.

The Court takes judicial notice of its own records (Evid. Code § 452(d)) that, on June 8, 2026, the Court denied Plaintiff's motion for leave to file a late claim.

The foregoing is sufficient to demonstrate that no triable issue of material fact exists as to whether Plaintiff is barred from maintaining this action due to the failure to file a timely claim. As such, the burden shifts to Plaintiff to demonstrate that a triable issue of material fact exists

Plaintiff has filed a notice of non-opposition. As such, Plaintiff has failed to meet his burden of demonstrating that a triable issue of material fact exists.

The motion for summary judgment is GRANTED.